

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL No.31/2026

M/S Syed Nasur Ullah & Brothers
Through its Authorized Representative Nasar Ullah,
Holding CNIC No.54303-2044961-5
Office at Band road Pishin.

.... Appellant

Versus

1. Local Government Department, Through its Secretary office at civil Secretariat, Zarghoon road Quetta.
2. Chief officer Municipal corporation Pishin, District Pishin
3. Grievance Redressal Committee, through its Chairman Division Quetta.
4. M/s A.H.S Brothers
5. Assistant Engineer Municipal Corporation Pishin, District Pishin.

.... Respondents

Quorum

1. Habib-Ur-Rehman Jamot
2. Iftikhar Ahmed Sanjrani
3. Engr. Junaid Shah
4. Iftikhar Ahmed Mir
5. Syed Muheebullah

Chairman PRC
Member PRC
Member PRC
Private Member PRC
Private Member PRC

APPEAL UNDER RULE-56-A OF THE BALUCHISTAN PUBLIC PROCUREMENT RULES, 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE NO. 252609860093 BY THE MUNICIPAL CORPORATION PISHIN AT DISTRICT PISHIN OF LOCAL GOVERNMENT DEPARTMENT GOVERNMENT OF BALUCHISTAN

For the Appellant: Nasar Ullah

For the Respondents No. 3 Representative
For the Respondents No. 5 In Person

BRIEF FACTS

The Appellant is a licensed contractor registered with the Pakistan Engineering Council (PEC) under Category C-5 (PEC No. 14669), and is also registered with the Federal Board of Revenue (FBR) and the Baluchistan Revenue Authority (BRA). The Municipal Corporation Pishin, under PRQ No. 271/18-09-2025, invited bids through Single-StageTwo-Envelope Procedure for multiple Technical Service Elements (TSEs), including TSE No. 252609860093 titled "Providing and Fixing of Street Lights at Ward No. 13, Municipal Corporation Pishin," with an estimated cost of PKR2,100,000.

The Appellant submitted its bid in accordance with the prescribed procedure. The technical bids were opened on 03-10-2025, wherein out of eight bidders, six bidders, including the Appellant, were declared non-responsive. The Procuring Agency declared the Appellant non-responsive on the grounds of alleged non-submission of similar assignments, unstamped and unsigned technical documents, non-submission of declaration of genuine documents, non-submission of agreement with terms and conditions, and non-submission of non-blacklisting certificate.

Subsequently, the financial bids were opened on 31-12-2025, and Respondent No. 4 was declared the successful bidder.

Aggrieved by its disqualification, the Appellant filed a complaint before the Complaint Redressal Committee (CRC) within prescribed time limit on 02-01-2026, which was duly acknowledged. However, the CRC rejected the complaint vide order dated 08-01-2026 on the ground of limitation without examining the merits of the case.

Being aggrieved by the said order, the Appellant filed the instant appeal before this Committee under Rule 56-A of the BPPRA Rules, 2014.

APPELLANT'S CONTENTIONS

The Appellant raised the following contentions:

- That the Appellant fulfilled all eligibility requirements prescribed in the bidding documents.
- That the Appellant submitted a consolidated brochure containing details of similar assignments, audit reports, company profile, and supporting technical documentation.
- That the Appellant submitted one consolidated brochure for six (06) TSEs issued under the same Notice Inviting Tender (NIT) by the same Procuring Agency.
- That the brochure contained documentary evidence of similar assignments and audit reports demonstrating technical experience and financial capability.
- That despite submission of the required documents, the Procuring Agency incorrectly declared the Appellant non-responsive without properly examining the submitted record.
- That the Procuring Agency failed to clearly specify which technical documents were required to be stamped and signed, thereby rendering the evaluation criteria ambiguous.
- That the Complaint Redressal Committee rejected the complaint on limitation without lawful justification, despite the complaint having been filed within time and duly acknowledged.
- That the actions of the Procuring Agency were arbitrary, unlawful, and in violation of the BPPRA Rules, 2014, and principles of transparency and fair competition.

RESPONDENTS' CONTENTIONS

The Respondents raised the following contentions:

- That the Appellant failed to fulfill the mandatory eligibility criteria prescribed in the bidding documents.
- That the Appellant did not provide sufficient documentary evidence of similar assignments.
- That the Appellant failed to submit properly stamped and signed documents.
- That the Appellant failed to submit declaration of genuine documents, agreement with terms and conditions, and non-blacklisting certificate.
- That the Technical Evaluation Committee evaluated the bids in accordance with Rules 34 and 35 of the BPPRA Rules, 2014.
- That the Appellant was declared non-responsive based on documentary evaluation.

- That the Complaint Redressal Committee rejected the complaint in accordance with applicable rules.
- That the Procuring Agency conducted the procurement process lawfully.

POINTS FOR DETERMINATION

The following points arise for determination:

1. Whether the Appellant submitted documentary evidence of similar assignments and supporting documents.
2. Whether the Procuring Agency properly examined and evaluated the documents submitted by the Appellant.
3. Whether the evaluation criteria prescribed by the Procuring Agency were clear and unambiguous in accordance with Rule 34 of the BPPRA Rules, 2014.
4. Whether the rejection of the Appellant's complaint by the Complaint Redressal Committee was lawful.
5. Whether the evaluation process was conducted in accordance with the BPPRA Rules, 2014, and principles of transparency and fair competition.

FINDINGS OF THE COMMITTEE

After hearing the parties and examining the available record, the Committee makes the following findings:

The Committee observed that the Appellant submitted its bid along with supporting technical documentation, including a consolidated brochure containing details of similar assignments, audit reports, company profile, and supporting documents, as part of its bid submissions.

The Committee further observed that the Evaluation Report prepared by the Procuring Agency marked the required documents as "Yes," which indicates that the documents were available on record at the time of evaluation.

However, the Procuring Agency declared the Appellant non-responsive without properly examining and assessing the submitted documents, including the consolidated brochure and supporting documentation.

The Committee also observed that the Procuring Agency failed to clearly specify the exact requirement regarding stamping and signing of technical documents, which created ambiguity in the evaluation process and is inconsistent with Rule 34 of the BPPRA Rules, 2014, which requires clear and unambiguous evaluation criteria.

The Committee further observed that the Complaint Redressal Committee rejected the complaint on limitation without providing lawful justification, despite the complaint having been filed and acknowledged.

The Committee also noted that the Procuring Agency issued a single Notice Inviting Tender covering thirty-six (36) TSEs with the same submission and opening date, which raises serious concerns regarding transparency, fairness, and proper evaluation.

In view of the above, the Committee finds that the evaluation of the Appellant was not conducted in accordance with the BPPRA Rules, 2014, and the prescribed evaluation criteria.

DECISION

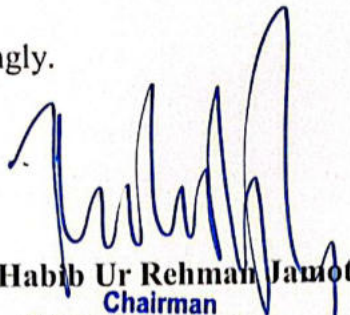
For the reasons recorded above, the appeal is hereby allowed to the extent indicated.

The Procuring Agency is directed to re-evaluate the technical bid of the Appellant strictly in accordance with the BPPRA Rules, 2014, and the prescribed evaluation criteria.

The Procuring Agency shall submit a compliance report to this Committee within fifteen (15) days from the date of issuance of this decision.

The Registrar is directed to communicate this decision to the Appellant and all Respondents for necessary compliance.

The Appeal is disposed of accordingly.

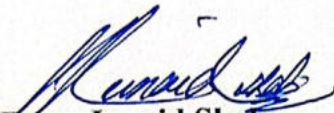

Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PBRA)

24/02/2026

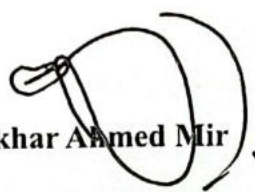

24/02/2026

Iftikhar Ahmed Sanjrani

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah
Member
Procurement Review Committee
BPPRA


24/2/2026

Iftikhar Ahmed Mir

Member
Procurement Review Committee
BPPRA


24-2-26

Syed Muheebullah, Advocate

Member
Procurement Review Committee
BPPRA